

		In addition, the Court of Appeal has held that an arbitrator's decision to dismiss claims in arbitration pursuant to Civil Procedure Code section 583 for failure to bring an action to trial within 5 years was the equivalent of an award in defendant's favor that was binding on the Superior Court. (See <i>Young v. Ross-Loos Medical Group, Inc.</i> (1982) 135 Cal.App.3d 669, 672-673.) Thus, such an award by the arbitrator had to be enforced by the Superior Court by dismissing the underlying civil action in accordance with Section 583, unless there was a basis for vacating the award. (See <i>id.</i> at pp. 673-674; see also <i>Burgess v. Kaiser Foundation Hospitals</i> (1993) 16 Cal.App.4th 1077, 1081-1082 [same with respect to Civil Procedure Code section 583.310].) The court can discern no basis for differentiating between an arbitrator's dismissal pursuant to Civil Procedure Code sections 583.310 and 583.410. Both are dismissals based upon statutory provisions for plaintiff's delay in bringing the matter to trial. In addition, Plaintiffs have presented no basis to vacate the arbitrator's award. The court therefore must enforce that award by dismissing all of Plaintiffs' claims, as the arbitrator did. Defendant Hsiao shall give notice of this ruling.
11	Stein vs. LAD Mission Viejo-JLR, Inc. 30-2023-01300906	<u>Motion to Compel Discovery</u> Plaintiff Jennifer Stein's Motion to Compel Further Responses to Request for Production Set One from Defendant Jaguar Land Rover North America, LLC is GRANTED in part and DENIED in part. Defendant Jaguar Land Rover North America, LLC is ORDERED to serve verifications to its responses to Plaintiff Jennifer Stein's Request for Production Set One within 30 days of service of the notice of ruling. Defendant Jaguar Land Rover North America, LLC is ORDERED to serve full, complete, and verified responses to Plaintiff Jennifer Stein's Request for Production Set One, Requests Numbers 33-40 and all responsive documents to Requests Numbers 33-40 within 30 days of service of the notice of ruling.

		Defendant Jaguar Land Rover North America, LLC is ORDERED to pay to Plaintiff Jennifer Stein sanctions in the amount of \$2,411.25 (4.75 hours x \$495 per hour in reasonable attorney's fees and \$60 in motion filing fees) within 30 days of service of the notice of ruling. Plaintiff Jennifer Stein moves to compel further responses to Plaintiff's Request for Production Set One, Requests Numbers 18 and 33-41 from Defendant Jaguar Land Rover North America (Defendant Manufacturer). <u>Standard to Compel Further Responses to Request for Production</u> A party may move for an order compelling further responses to requests for the production of documents on the grounds that: (1) a statement of compliance with the request is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).) In addition, "[i]f a party filing a response to a demand for inspection, copying, testing, or sampling . . . thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance, the demanding party may move for an order compelling compliance." (Code Civ. Proc., § 2031.320, subd. (a).) As a general matter, parties are entitled to discovery of "any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (Civil Proc. Code, § 2017.010.) Further, the Civil Discovery Act was intended to provide the right to broad discovery and must be liberally construed in favor of allowing discovery. (<i>See Sinaiko Healthcare Consulting, Inc. vs. Pacific Healthcare Consultations</i> (2007) 148 Cal.App.4th 390, 402.) Thus, any doubts concerning the permissibility of discovery are generally resolved in favor of allowing discovery. (<i>See Advanced Modular</i>
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		<i>Sputtering, Inc. v. Superior Court</i> (2005) 132 Cal.App.4th 826, 837; <i>Glenfed Development Corp. v. Superior Court</i> (1997) 53 Cal.App.4th 1113, 1119.) For example, doubts as to the relevance of discovery should be resolved in favor of the requesting party. (See <i>Mercury Interactive Corp. v. Klein</i> (2007) 158 Cal.App.4th 60, 98.) This is because the purpose of statutes establishing the expansive scope of discovery is to eliminate surprise at trial, to educate parties concerning their claims and defenses so as to encourage settlements and to expedite and facilitate trial, and to minimize opportunities for fabrication and forgetfulness. (<i>Puerto v. Superior Court</i> (2008) 158 Cal.App.4th 1242, 1249.) <u>Unverified Responses</u> It is well-established that “an unverified response is tantamount to no response at all.” (<i>Melendrez v. Superior Court</i> (2013) 215 Cal.App.4th 1343, 1348; see also <i>Appleton v. Superior Court</i> (1988) 206 Cal.App.3d 632, 636 [“Unsworn responses are tantamount to no responses at all.”]; <i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489 [“As the court noted, the responses finally given were legally invalid, because they were unverified.”].) Here, Plaintiff has presented evidence that Defendant Manufacturer’s May 4, 2023 responses to Plaintiff’s Request for Production Set One was not accompanied by verifications. (Declaration of Jeffrey Mukai in Supp. of Mot. to Compel Further Responses, ¶ 8.) Defendant Manufacturer has neither denied this nor presented evidence that it is untrue. Thus, at a minimum, Defendant Manufacturer’s responses were not code compliant because they lacked verifications and the court must order Defendant Manufacturer to serve verified responses. <u>Request for Production Number 18</u> Request for Production Number 18 seeks “[t]he operative Franchise Agreement, if any, on the date of sale of the SUBJECT VEHICLE between [Defendant Manufacturer] and the dealership that sold the SUBJECT VEHICLE to Plaintiff.”
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		"Although the scope of civil discovery is broad, it is not limitless." (<i>Calcor Space Facility, Inc. v. Superior Court</i> (1997) 53 Cal.App.4th 216, 223.) A party seeking to compel further responses to requests for production of documents is still required to "set forth specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b)(1).) Here, Plaintiff has not pointed to any good cause justifying production of Defendant Manufacturer's franchise agreement with the dealership that sold the subject vehicle to Plaintiff. Plaintiff does allege that Defendant Jaguar Mission Viejo/Land Rover Mission Viejo (Defendant Jaguar Mission Viejo), failed "to properly store, prepare and repair . . . the Subject Vehicle in accordance with industry standards," and that this failure was the proximate cause of Plaintiff's damages. (See Compl., ¶¶ 42-43). However, there are no allegations in the Complaint and no evidence presented that Defendant Jaguar Mission Viejo sold the subject vehicle to Plaintiff. Even if Defendant Jaguar Mission Viejo sold the subject vehicle to Plaintiff, no showing has been made that the franchise agreement between Defendant Manufacturer and Defendant Jaguar Mission Viejo has any relevance to the claims at issue here. <u>Request for Production Numbers 33-40</u> Request for Production Numbers 33-36 seek documents pertaining to technical service bulletins, recalls, field service actions, and special service messages for vehicles of the same year, make and model as the subject vehicle. Defendant Manufacturer produced a list of the documents that might be responsive to the requests, but failed to produce the documents themselves. Defendant Manufacturer also directed Plaintiff to a website where she could obtain the documents for a fee. Defendant Manufacturer's responses do not comply with Civil Procedure Code section 2031.220, which requires the responding party to produce all responsive documents "that are in the possession, custody, or control of that party
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		" (Code Civ. Proc., § 2031.220; see <i>Roche v. Hyde</i> (2020) 51 Cal.App.5th 757, 813 ["The idea that Ram's Gate could avoid producing the records of a predecessor corporation whose files it controlled was not only frivolous under the governing "possession, custody, or control" standard [citations], but on this record was deceptive."].) Request for Production Numbers 37-40 seek documents pertaining to OBDII codes, vehicle symptom codes, vehicle component repair codes, and customer complaint codes. In its responses to these requests, Defendant Manufacturer also advised Plaintiff that she could obtain documents pertaining to these codes from a website. For the reasons stated above, this response was not code-compliant and Defendant Manufacturer must produce responsive documents in its possession, custody, or control. For example, in a letter dated August 18, 2023, Defendant Manufacturer provided an explanation on interpreting the "Customer Concern Code" and "Condition Code." This suggests Defendant Manufacturer is in possession, custody or control of documents that would aid Plaintiff in interpreting these codes. <u>Request for Production Number 41</u> Request for Production Number 41 seeks "DOCUMENTS sufficient to show all labor operation codes provided by [Defendant Manufacturer] to YOUR authorized dealerships from 2022 to present." In an August 18, 2023 letter, defense counsel advised Plaintiff that she would confer with her client to confirm whether any responsive documents existed. (See Decl. of Liana A. Wong in Supp. of Def. Manufacturer's Opp'n to Pltf.'s Mot. to Compel Further Responses, Exh. A.) Plaintiff did not wait for defense counsel to provide further information or even request that Defendant Manufacturer provide such information. Plaintiff instead filed its Motion to Compel the next court day. A motion to compel further responses must include a meet and confer declaration consistent
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		with Civil Procedure Code section 2016.040. (See Code Civ. Proc., § 2031.310, subd. (b)(2).) Civil Procedure Code section 2016.040 requires that the moving party have made "a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., § 2016.040.) The Civil Procedure Code "requires that there be a serious effort at negotiation and informal resolution" and "that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (<i>Townsend v. Superior Court</i> (1998) 61 Cal.App.4th 1431, 1438-1439.) With respect to Request for Production Number 41, Plaintiff failed to meet the requirements of Sections 2016.040 and 2031.310(b)(2). The court therefore will deny this request. <u>Sanctions</u> The Civil Procedure Code requires the court to impose monetary sanctions against a party, person, or attorney who unsuccessfully makes or opposes a motion to compel "unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.300, subd. (c).) If the results of the motion to compel are mixed, the trial court has the discretion to apportion sanctions or award no sanctions on any terms as may be just. (See <i>Mattco Valley Forge v. Arthur Young & Co.</i> (1990) 223 Cal.App.3d 1429, 1437.) Here, Plaintiff was successful with respect to the majority of matters in her motion – including the lack of verifications and further responses to Requests for Production Numbers 33-40. As to these issues, Defendant Manufacturer has provided no substantial justification for its opposition nor did it point to any circumstances that make the imposition of the sanction unjust. However, Defendant Manufacturer was successful in opposing the motion with respect to Requests for Production Numbers 18 and 41. The court therefore will apportion the sanctions for the mixed results. Plaintiff shall give notice of this ruling.
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